



STANDARD TERMS · VERSION 1 · OCTOBER 2026

Photography Services Agreement

*This agreement sets out how I work, what you receive and how the photographs can be used.
The date, location, services, deliverables and fee for your job are set out in the estimate or
invoice this agreement is attached to (the "Estimate").*

1 The parties

This agreement is between Gwendolen Tabitha Swain, trading as Gwendolen Swain Photography (ABN 76 175 493 341) ("I", "me", "my"), and the client named in this contract ("you", "your"). Together with the Estimate, it is the whole agreement between us. If the Estimate and this agreement differ on the details of your job, the Estimate applies.

2 Booking and deposit

Your booking is confirmed once you have signed this agreement and paid the deposit shown in the Estimate (normally 30% of the fee). Until then I can't hold the date for you. I am not registered for GST, so no GST is included in or added to my fees.

3 Payment

The balance of the fee is due before your final images are delivered, unless the Estimate sets a different due date. Travel outside metropolitan Melbourne, location or permit fees, venue charges, props, prints and any other expenses are charged as shown in the Estimate or as agreed with you in writing beforehand. If a payment is overdue, I may hold back delivery of images until it is paid.

4 Cancelling or rescheduling **INITIALLED**

If you cancel or postpone more than 14 days before the shoot, I will move your deposit to a new date once, provided the new date is within 6 months and I am available. If you cancel within 14 days of the shoot, or don't rebook within 6 months, the deposit is kept to cover the time I have reserved for you. If the weather or conditions make an outdoor shoot unsafe or unsuitable, we will agree a new date at no extra cost. If I have to cancel because of illness, injury or an emergency, I will offer you a new date or refund everything you have paid, whichever you prefer.

5 On the day

Please arrive on time; time lost to a late start comes out of the booked session. If you ask me to stay longer and I am able to, extra time is charged at the hourly rate in the Estimate. Unless the Estimate says I will arrange it, you are responsible for permission to photograph at the location, including private property, venues, council land and Parks Victoria land, and any permit fees are passed on to you. I may pause or end a shoot if I reasonably believe conditions are unsafe for anyone present.

6 People in the photographs

For events, you are responsible for letting guests know that photography is taking place (for example on the invitation or with signage), and for pointing out anyone who has asked not to be photographed. I will only photograph children with the consent of a parent or guardian, or of the organisation responsible for them, and a parent, guardian or responsible adult must be present.

7 Editing and delivery

I select and edit the images in my own style. You will receive the approximate number of edited, high-resolution digital images set out in the Estimate through a private online gallery. Unless the Estimate says otherwise, delivery is within 2 weeks of the shoot for portraits and 3 weeks for events, and as stated in the Estimate for artwork documentation. Edits include colour, exposure and cropping, plus light retouching of portraits; extensive retouching is quoted separately. Unedited (RAW) files and outtakes are not supplied. Please download and back up your images: the gallery stays online for at least 60 days, and I keep an archive copy for at least 12 months but can't guarantee to keep it after that.

8 Copyright INITIALLED

I own the copyright in all photographs I take under this agreement, including photographs taken for private or domestic purposes. This is an agreement to the contrary for the purposes of section 35(5) of the Copyright Act 1968 (Cth). If you need to own the copyright, I can transfer it under a separate written agreement for an additional fee.

9 Your licence to use the images

Once you have paid in full, I give you a non-exclusive, non-transferable, ongoing licence to use the delivered images as follows. Portraits and personal shoots: personal use, including printing, sharing with family and friends, social media, and using a headshot on your own professional profiles, website and bios. Events and organisations: your organisation's own communications, including its website, social media, newsletters, annual reports and publicity for the event, but not paid advertising, resale, stock libraries or use by third parties such as sponsors unless the Estimate says so. Artwork documentation: documenting and promoting the artwork and your practice, including your portfolio, applications, grant and prize submissions, catalogues, press, website and social media; galleries that represent you may use the images for the same purposes. For any other use, please ask me first, as an additional licence fee may apply.

10 Credit and alterations

Where it is practical, such as in publications, press and exhibitions, please credit the images "Photo: Gwendolen Swain". You may crop an image to fit a format, but please don't apply filters or otherwise alter the images without my agreement.

11 My use of the images

I may use images from your job in my portfolio, on my website and social media, in exhibitions and competitions, and to promote my photography. If you would prefer I didn't, tell me in writing before the shoot and I won't use any image in which you or your guests can be identified. I won't use images of your artwork for anything other than my portfolio without your permission, and I will credit you as the artist. I won't sell or license images of identifiable people for advertising or stock without their written release.

12 Privacy

I collect your contact details and the information you give me to manage your booking. They are kept in my business email and in Square, and are shared only as needed to deliver your job (for example, with my online gallery provider). I won't sell your details. See gwendolen.com.au/privacy.html for more.

13 Responsibility

Nothing in this agreement excludes or limits your rights under the Australian Consumer Law. I take reasonable care with your images, including keeping backup copies. If, despite that care, I can't provide the services or images are lost or damaged because of equipment failure, illness or circumstances outside my control, my responsibility is limited, as far as the law allows, to re-shooting at no charge or refunding what you have paid for the affected services. I am not responsible for indirect losses.

14 General

Changes to this agreement or the Estimate must be agreed in writing; email is fine. If a dispute arises, we will first try to resolve it by talking in good faith, and then by mediation, before taking any other step. This agreement is governed by the laws of Victoria, Australia. Electronic signatures are binding.

These are my standard terms. When you book, you'll receive this agreement to sign electronically through Square, attached to your quote. Clauses marked *Initialled* are initialled as part of signing. If your organisation needs changes, please send them to sales@gwendolen.com.au before booking.

Client signature & date

Gwendolen Swain & date